

25NNCV04591 25NNCV04591

County: los-angeles

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Case Number: 25NNCV04591 Hearing Date: August 28, 2026 Dept: D

TENTATIVE RULING

Calendar: 4

Date: August 28, 2026

Case No: 25NNCV04591 Trial Date: August 23, 2027

Case Name: Vela v. General Motors, LLC et al.

MOTION FOR ATTORNEYS' FEES

[CCP § 1794 subd. (d)]

Moving Party: Plaintiff, Angelica Vela

Responding Party: Defendant, General Motors LLC

RELIEF REQUESTED:

Order awarding attorneys' fees and costs in the amount of \$20,033.19 comprised of attorneys' fees of \$18,891.00 and costs of \$1,142.19.

CAUSES OF ACTION: from Complaint

1) Breach of Express Warranty Obligations

2) Breach of Implied Warranty Obligations

3) Failure to Repair in a Good and Workmanlike Manner

SUMMARY OF FACTS:

This case is a lemon-law action. Angelica Vela ("Plaintiff") alleges that on April 23, 2023, Plaintiff purchased a 2023 Chevrolet Silverado, for which General Motors LLC ("Defendant") issued express warranties. Plaintiff alleges that the vehicle was delivered with defects and nonconformities to warranties. Plaintiff alleges that the defects and nonconformities to warranty manifested themselves within the express warranty period. The Complaint alleges that notwithstanding Plaintiff's entitlement, Defendant has failed to either promptly replace the new motor vehicle or to promptly make restitution in accordance with the Song-Beverly Act.

ANALYSIS:

"Except as otherwise expressly provided by statute, a prevailing party is entitled as a matter of right to recover costs in any action or proceeding." (CCP, § 1032 subd. (b).) Attorney fees are allowed as costs when authorized by contract, statute or law. (CCP, § 1033.5, subd. (a)(10)(B).)

In a lemon law action, costs and expenses, including attorney's fees, may be recovered by a prevailing buyer under the Song-Beverly Act. Civil Code section 1794 states:

"If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action."

(Civil Code, § 1794, subd. (d).)

Entitlement to Attorneys' Fees

The parties here do not dispute that Plaintiff is the prevailing party pursuant to a November 19, 2025 Settlement Agreement which provides for an award of attorneys' fees, costs, and expenses to be determined by noticed motion. (Sanchez Decl., ¶ 2, Ex. A.) Thus, Plaintiff is the prevailing party in this action and is entitled to a reasonable amount of attorneys' fees.

Reasonableness of Fees

Plaintiff seeks an award of attorneys' fees and expenses in the total amount of \$20,033.19 consisting of: (1) \$15,742.50 in attorneys' fees; (2) a 1.2 multiplier enhancement on the attorneys' fees [or \$3,148.50]; and (3) \$1,142.19 in costs. The motion seeks approximately 40.5 hours of time spent by attorneys and paralegals at Joseph Kaufman & Associates, Inc. at billing rates ranging from \$175.00 to \$615.00 per hour.

In the opposition, Defendant does not object to Plaintiff's counsel's hourly rates, the number of hours incurred, or the requested costs. Defendant objects only to Plaintiff's request for a fee multiplier. (Opp., p. 2:6-14.)

The Court has independently reviewed Plaintiff's requested hourly rates and billing records and finds both to be reasonable. The moving papers provide evidence justifying the billing rates claimed, including the experience and expertise of each

attorney who billed on this matter. (Sanchez Decl., ¶¶ 8-14; Kaufman Decl., ¶ 13.) The Court has also reviewed the billing records and does not identify any entries that appear excessive, duplicative, or otherwise unreasonable.

Having considered the motion and pleadings filed, and the billing records submitted, the Court finds that a reasonable lodestar in this case is \$15,742.50, representing 40.5 hours of attorney time. The Court does not reduce the lodestar or the requested hours.

Multiplier

While the lodestar reflects the basic fee for comparable legal services in the community, it may be adjusted based on various factors, including “(1) the novelty and difficulty of the questions involved, and the skill displayed in presenting them; (2) the extent to which the nature of the litigation precluded other employment by the attorneys; (3) the contingent nature of the fee award” and (4) the success achieved. (Serrano v. Priest (1977) 20 Cal.3d 25, 49.)

Nonetheless, the court must not consider extraordinary skill and the other Serrano factors to the extent these are already included with the lodestar. (Ketchum v. Moses (2001) 24 Cal. 4th 1122, 1138-1139.) “[A] trial court should award a multiplier for exceptional representation only when the quality of representation far exceeds the quality of representation that would have been provided by an attorney of comparable skill and experience billing at the hourly rate used in the lodestar calculation. Otherwise, the fee award will result in unfair double counting and be unreasonable.” (Id. at 1139.)

Plaintiff requests a lodestar multiplier enhancement of 1.2 to account for risk and delay in payment. (Mot., pp. 8:15-9:10.)

The Court finds that under the circumstances of this case, a lodestar multiplier is not appropriate. There is no indication that counsel was prevented from taking on other clients by the representation. There is no indication that this litigation presented novel or difficult legal issues. While counsel accepted the case on a contingency basis and Plaintiff’s attorneys advanced all litigation costs and expenses, the Court finds that such consideration and risk is already included within the lodestar amount. That conclusion is because the hourly rates allowed for by the Court are hourly rates for lemon law cases done on a contingency basis.

Based on the foregoing, the Court declines to award a lodestar multiplier.

Entitlement and Reasonableness of Costs

Allowable costs “shall be reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation.” (CCP § 1033.5, subd. (c)(2).) Any items not specifically mentioned by statute “may be allowed or denied in the court’s discretion.” (CCP, § 1033.5 subd. (c)(4).)

Song-Beverly allows a successful plaintiff to recover both “costs” and “expenses.” (Civ. Code, § 1794, subd. (d).) Courts have held that “it is clear the Legislature intended the word

‘expenses’ to cover items not included in the detailed statutory definition of ‘costs.’” (Jensen v.

BMW of North America, Inc. (1995) 35 Cal.App.4th 112, 137.) The court in Jensen

held that “[t]he legislative history indicates the Legislature exercised its power to permit the

recovery of expert witness fees by prevailing buyers under the Act ... ,” noting that the

legislature included “expenses” in the lemon law act because “[t]he addition of awards of “costs

and expenses” by the court to the consumer to cover such out-of-pocket expenses as filing fees,

expert witness fees, marshal's fees, etc., should open the litigation process to everyone.’

[Citation.]” (Ibid.)

Plaintiff requests a total of \$1,142.19 in litigation costs and expenses. (Kaufman Decl., Ex. A.) The items claimed are proper and necessary on their face, shifting the burden to Defendant to show that they were not reasonable or necessary. Defendant in opposition does not contest the costs. Thus, the costs and expenses are awarded in full as requested in the sum of \$1,142.19.

RULING:

Plaintiffs’ Motion for Attorney Fees, Costs, and Expenses is GRANTED, IN PART.

The Court finds that reasonable attorney's fees, costs and expenses are:

Lodestar = \$15,742.50

Expenses and Costs = \$1,142.19

Total Award= \$16,884.69

The total fee award of \$16,884.69 [\$20,033.19 sought] is to be awarded to Plaintiff Angelica Vela against Defendant General Motors, LLC and added to the judgment.

Counsel for moving party is ordered to prepare a proposed form of judgment and submit it on eCourt by noon today in accordance with this order.

DEPARTMENT D IS CONTINUING TO CONDUCT AND ENCOURAGE

VIDEO APPEARANCES

If you wish to appear remotely on LACourtConnect, you may register by visiting www.lacourt.ca.gov to schedule a remote appearance. Please note that LACourtConnect offers free audio and video appearances. Department D is now requiring either live or VIDEO appearances, not audio appearances.